

Power of Escheat in Michigan

When a property owner dies without having a will in place, that individual has died intestate. (A person with a will died testate, of course.) In the case of no will, the property is distributed to heirs in accordance with inheritance law. But if no heirs or creditors can be found, the state can take the property through its powers of escheat. In some states, the county has this right; in Michigan, all personal and real property reverts to the state.

It may seem opportunistic of the government to take personal property when a person dies intestate or without creditors that can make a claim on the property. But imagine what would happen if the property lay vacant and unused. By taking possession, the government can put the property back into use for the public good.